Pradeep Kumar Yadav vs State (Nct Of Delhi) on 20 March, 2025

Author: Amit Sharma

Bench: Amit Sharma

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 594/2025
PRADEEP KUMAR YADAV
Through: Mr. Jasvinder Singh Lo
versus

STATE (NCT OF DELHI)
Through: Mr. Sanjeev Sabharwal, APP
Mansi Sharma, Advocate.
SI Ram Gulati, PS Maurice
Mr. Harsh Prabhakar, Advoc
Mr. Dhruv Chaudhry and Mr.
Advocates for survivor wit

CORAM:
HON'BLE MR. JUSTICE AMIT SHARMA

ORDER

% 20.03.2025

1. This hearing has been done through hybrid mode.

2. The present application under Section 439 of the Cr.P.C. (Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023) seeks regular bail in FIR No. 65/2024, under Section 376 of the IPC, registered at P.S. Maurice Nagar.

3. The present FIR was registered at the instance of the complainant/survivor, who had alleged that she met the applicant in March 2023 at Delhi University and thereafter, they both became friends. It is alleged that, after about 15 days, the applicant made physical relationship with her on the pretext of marriage at Christian Colony, Patel Chest, Delhi University. It is further alleged that she had provided for him financially and after a passage of some time, when she insisted on marriage, he informed her that he is This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 20/03/2025 at 22:58:32 already married and has a child. It is further alleged that the complainant had got pregnant and the applicant had provided her with certain pills for her abortion through his roommate in Delhi.

4. Learned counsel for the applicant submits that the applicant and the complainant were in a

relationship which was consensual in nature and without any inducement or fraud being played upon her. It is further submitted that the charge-sheet in the present has been filed and charges have been framed by the learned Trial Court and the applicant is in custody since 09.04.2024 and no purpose will be served by keeping him under judicial custody.

5. The survivor/complainant is present in Court today along with her counsel, Mr. Harsh Prabhakar, Advocate (DHCLSC), appointed by this Court. She submits that the applicant was a friend and they are still friends and she has no objection if the applicant is granted bail.

6. In view of the aforesaid facts and circumstances of the present case, the present application is allowed. The applicant is directed to be released on bail, on his furnishing a personal bond of Rs. 25,000/- with one surety of like amount, to the satisfaction of the learned Trial Court/Link Court, further subject to following conditions: -

> i.The applicant shall not leave India without prior permission of the learned Trial Court.
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> ii.The applicant shall intimate the learned Trial Court by way of an affidavit and to the Investigating Officer regarding any change in residential address. iii.The applicant shall appear before the learned Trial Court as and when the matter is taken up for hearing.
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> iv.The applicant is directed to give his mobile number to the Investigating This is a digitally signed order.
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> The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 20/03/2025 at 22:58:32 Officer and keep it operational at all times.
>
> v.The applicant shall not, directly or indirectly, tamper with evidence or try to influence the witness in any manner.

7. The application is allowed and disposed of accordingly.

8. Pending applications, if any, also stand disposed of.

9. Needless to state that, nothing mentioned hereinabove, is an opinion on the merits of the case and any observations made herein are only for the purpose of the present bail application.

10. Copy of the order be sent to the concerned Jail Superintendent for necessary information and compliance.

11. Order be uploaded on the website of this court forthwith.

AMIT SHARMA, J MARCH 20, 2025/PB Click here to check corrigendum, if any This is a digitally signed order.

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